

24TRCV00753 24TRCV00753

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24TRCV00753 Hearing Date: September 21, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

GLORIA GONZALEZ-KARCH

;

Plaintiff,

vs.

CITY OF INGLEWOOD

, et al.;

Defendants.

Case

No.:

24TRCV00753

Hearing

Date:

September
21, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

PLAINTIFF

GLORIA GONzalez-karch's motion to compel defendant hollywood park management company, llc's further responses to plaintiff's request for production of documents, set one

(2)

plaintiff

GLORIA GONzalez-karch's request for monetary sanctions

MOVING PARTY: Plaintiff, Gloria Gonzalez-Karch

RESPONDING PARTY: Defendant, Hollywood Park Management Company, LLC

(1)

Plaintiff

Gloria Gonzalez-Karch's Motion to Compel Defendant Hollywood Park Management Company, LLC's Further Responses to Plaintiff's Request for Production of Documents, Set One, is DENIED pursuant to Code of Civil Procedure section 2031.310, subdivision (b)(1).

(2)

Plaintiff

Gloria Gonzalez-Karch's Request for Monetary Sanctions is DENIED pursuant to Code of Civil Procedure section 2031.310, subdivision (b)(1).

The Court considers the moving papers filed on June 1, 2026, the opposition brief filed on August 20, 2026,

the reply brief filed on August 25, 2026, the objections filed on August 25, 2026, and the response to those objections filed on August 27, 2026.

BACKGROUND

Factual Background

On March 4, 2024, plaintiff Gloria Gonzalez-Karch ("Plaintiff") filed the Complaint against defendants City of Inglewood, County of Los Angeles, State of California, California Department of Transportation, YouTube Theater, Sofi Stadium, Pincay RE, LLC, Blue and Gold Tenant LLC, Stadco LA, LLC, and DOES 1 through 50. The Complaint includes two causes of action: (1) General Negligence and (2) Premises Liability.

On May 24, 2024, Plaintiff dismissed defendants City of Inglewood, County of Los Angeles, State of California, California Department of Transportation, and Blue and Gold Tenant LLC without prejudice.

On November 7, 2024, Plaintiff dismissed defendants Sofi Stadium and YouTube without prejudice.

On October 7, 2025, Plaintiff filed an amendment to the Complaint, naming Hollywood Park Residential Investors, LLC as defendant DOE 1. On the same day, Plaintiff filed another amendment to the Complaint, naming Hollywood Park Management Company, LLC ("HPMC") as defendant DOE 2.

On January 31, 2026, Plaintiff served HPMC with Requests for Production of Documents, Set One. (Declaration of Saideh Ghasemi Moghadam ("Moghadam Decl."), ¶ 3, Exh. 1.)

On March 18, 2026, following an extension granted by Plaintiff, HPMC provided unverified responses. (Moghadam Decl., ¶ 7, Exh. 2.) Subsequently, on March 20, 2026, HPMC provided its verifications. (Moghadam Decl., ¶ 8, Exh. 3.)

On March 24, 2026, Plaintiff's

counsel emailed HPMC's counsel, stating, "Despite extension, your responses are extremely deficient. We will send you a meet and confer letter and then we will file a motion to compel requesting sanction this time for sure." (Moghadam Decl., ¶ 9, Exh. 4, p. 12.)

On April 8, 2026, Plaintiff's

counsel issued a meet-and-confer letter, asserting that "the responses remain evasive, incomplete, and non-compliant with the California Code of Civil

Procedure, and in many respects are tantamount to no responses at all." (Moghadam Decl., ¶ 10, Exh. 4, p. 10.) Plaintiff's counsel did not explain how the

individual responses were deficient. (Moghadam

Decl., Exh. 4, p. 10.) Furthermore,

Plaintiff's counsel requested that HPMC provide additional verified,

code-compliant responses without objections by 3:00 p.m. on April 15, 2026. (Moghadam Decl., Exh. 4, p. 10.) Additionally, Plaintiff's counsel indicated that

Plaintiff would file a motion to compel further responses and seek monetary

sanctions if the requested responses were not provided. (Moghadam Decl., Exh. 4, p. 10.) The email concluded with a request for a call

to meet and confer on April 9 or 10. (Moghadam

Decl., ¶ 11, Exh. 4, p. 10.) HPMC's

counsel confirmed on the same day that April 10 was suitable for a meeting. (Moghadam Decl., ¶ 11, Exh. 4, p. 10.)

On April 10, 2026, the

attorneys representing both parties met via phone to discuss the responses;

however, they did not address the individual responses in detail. (Moghadam Decl., ¶¶ 12-13, Exh. 4, p. 8.)

On April 22, 2026, Plaintiff's

counsel followed up, stating, "Per our phone conversation on April 10, 2026,

your supplemental responses were due on April 21, 2026. We already granted a two-week extension to file our motion. ¶ Per our phone conversation on April 10, 2026,

your supplemental responses were due on April 21, 2026. We already granted a two-week extension to file our motion." (Moghadam Decl., ¶ 12,

Exh. 4, p. 9.)

On the same day, HPMC's

counsel expressed regret for failing to respond to the meet-and-confer letter

but clarified, "From my understanding of the call you referenced, I was to get

you a response to your letter by April 21 so we can conduct another meet and confer tomorrow, April 23. The purpose

of the second call was to discuss the individual contentions addressed in your

letter.” (Moghadam Decl., ¶ 13, Exh. 4, p. 8.)

Throughout the remainder of that day and into April 24, 2026, the attorneys exchanged several emails and ultimately reached an agreement to schedule a meet-and-confer conference. (Moghadam Decl., ¶¶ 14-17, Exh. 4.) They arranged to conduct the conference over the phone on April 24, 2026, at 11:00 a.m. (Moghadam Decl., ¶ 18, Exh. 4, p. 5.)

On April 24, 2026, after the conference, Plaintiff’s counsel sent an email stating: “This is to confirm our meet and confer today. You stated that you will provide us with a protective order by the end of today, and upon our signature, you will produce the video. ¶ As to the remaining documents, if your responses are not code-compliant, Plaintiff will file a motion to compel. You also agreed to extend Plaintiff’s time to file the motion. We will reserve our time to file the motion for two weeks from April 27, 2026.” (Moghadam Decl., ¶ 18, Exh. 4, p. 4.)

On April 24, 2026, HPMC’s counsel provided a protective order. (Moghadam Decl., ¶ 19, Exhs. 4, 7.) Plaintiff signed the order on April 29, 2026. (Moghadam Decl., ¶ 19, Exhs. 4, p. 3.)

On April 29 and May 5, 2026, Plaintiff’s counsel followed up regarding supplemental responses and documents. (Moghadam Decl., ¶ 20, Exh. 4, pp. 2-3.) On May 6, 2026, HPMC’s counsel offered an apology and assured that they were actively working on the production of the responses and documents. (Moghadam Decl., ¶ 21, Exh. 4, p. 2.)

On May 7, 2026, Plaintiff’s counsel requested an extension to file a motion to compel. (Moghadam Decl., ¶ 21, Exh. 4, p. 2.) On the same day, HPMC’s counsel granted leave for Plaintiff to “[t]ake another month.” (Moghadam Decl., ¶ 22, Exh. 4, p. 2.)

On May 18, 2026, Plaintiff’s

counsel informed HPMC that they would proceed with filing a motion to compel. (Moghadam Decl., ¶ 23, Exh. 4, p. 1.) On May 19, 2026, HPMC's counsel replied, "I

truly apologize for the delay - let me check in with my team over here for an

update to give you." (Moghadam Decl., ¶

24, Exh. 4, p. 1.)

On July 20, 2026, HPMC

provided Plaintiff with a video recording pertinent to the case. (Declaration of Allen Lim ("Lim Decl."), ¶

10, Exh. 4.)

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EVIDENTIARY OBJECTIONS

HPMC's Objections

Sustain:

N/A.

Overrule:

1-4.

LEGAL STANDARD

A motion to compel further responses to a demand for inspection or production of documents may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive, or incomplete claims of inability to comply; or (3) unmeritorious or overly generalized objections. (Code Civ. Proc., § 2031.310, subd. (a).) Moreover, "[t]he motion shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2031.310, subd. (b)(2).)

A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand. (Code Civ. Proc., § 2031.310, subd. (b)(1).) "To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the

fact.” (Digital Music News LLC v

Superior Court (2014) 226 Cal.App.4th 216, 224 (“Digital Music News LLC”).) If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (Kirkland v. Superior Court (2002) 95 Cal. App.4th 92, 98.)

“[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

“The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

MEET AND CONFER REQUIREMENT

Plaintiff was required to meet and confer with HPMC before filing this motion. (Code Civ. Proc., § 2031.310, subd. (b)(2).) Code of Civil Procedure section 2016.040 states that a meet-and-confer declaration “shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040.) “ ‘The parties must present to each other the merits of their respective positions with the same candor, specificity and support during informal negotiations as during the briefing of discovery motions. Only after all the cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a ‘sincere’ effort to resolve the matter.’ ” (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1293-1294, quoting Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1435.)

On March 24, 2026, Plaintiff’s counsel emailed HPMC’s counsel, stating, “Despite extension, your responses are extremely deficient. We will sent you a

meet and confer letter and then we will file a motion to compel requesting sanction this time for sure.” (Moghadam Decl., ¶ 9, Exh. 4, p. 12.)

On April 8, 2026, Plaintiff’s counsel issued a meet-and-confer letter, asserting that “the responses remain evasive, incomplete, and non-compliant with the California Code of Civil Procedure, and in many respects are tantamount to no responses at all.” (Moghadam Decl., ¶ 10, Exh. 4, p. 10.) Plaintiff’s counsel did not explain how the individual responses were deficient. (Moghadam Decl., Exh. 4, p. 10.) Furthermore, Plaintiff’s counsel requested that HPMC provide additional verified, code-compliant responses without objections by 3:00 p.m. on April 15, 2026. (Moghadam Decl., Exh. 4, p. 10.) Additionally, Plaintiff’s counsel indicated that Plaintiff would file a motion to compel further responses and seek monetary sanctions if the requested responses were not provided. (Moghadam Decl., Exh. 4, p. 10.) The email concluded with a request for a call to meet and confer on April 9 or 10. (Moghadam Decl., ¶ 11, Exh. 4, p. 10.) HPMC’s counsel confirmed on the same day that April 10 was suitable for a meeting. (Moghadam Decl., ¶ 11, Exh. 4, p. 10.)

On April 10, 2026, the attorneys representing both parties met via phone to discuss the responses; however, they did not address the individual responses in detail. (Moghadam Decl., ¶¶ 12-13, Exh. 4, p. 8.)

On April 22, 2026, Plaintiff’s counsel followed up, stating, “Per our phone conversation on April 10, 2026, your supplemental responses were due on April 21, 2026. We already granted a two-week extension to file our motion. ¶ Per our phone conversation on April 10, 2026, your supplemental responses were due on April 21, 2026. We already granted a two-week extension to file our motion.” (Moghadam Decl., ¶ 12, Exh. 4, p. 9.)

On the same day, HPMC’s counsel expressed regret for failing to respond to the meet-and-confer letter but clarified, “From my understanding of the call you referenced, I was to get you a response to your letter by April 21 so we can conduct another meet and confer tomorrow, April 23. The purpose of the second call was to discuss the individual contentions addressed in your letter.” (Moghadam Decl., ¶ 13, Exh. 4, p. 8.)

Throughout the remainder of that day and into April 24, 2026, the attorneys exchanged several emails and ultimately reached an agreement to schedule a meet-and-confer conference. (Moghadam Decl., ¶¶ 14-17, Exh. 4.) They arranged to conduct the conference over the phone on April 24, 2026, at 11:00 a.m. (Moghadam Decl., ¶ 18, Exh. 4, p. 5.)

On April 24, 2026, after the conference, Plaintiff's counsel sent an email stating: "This is to confirm our meet and confer today. You stated that you will provide us with a protective order by the end of today, and upon our signature, you will produce the video.

¶ As to the remaining documents, if your responses are not code-compliant, Plaintiff will file a motion to compel. You also agreed to extend Plaintiff's time to file the motion. We will reserve our time to file the motion for two weeks from April 27, 2026." (Moghadam Decl., ¶ 18, Exh. 4, p. 4.)

On April 24, 2026, HPMC's counsel provided a protective order. (Moghadam Decl., ¶ 19, Exhs. 4, 7.) Plaintiff signed the order on April 29, 2026. (Moghadam Decl., ¶ 19, Exhs. 4, p. 3.)

On April 29 and May 5, 2026, Plaintiff's counsel followed up regarding supplemental responses and documents. (Moghadam Decl., ¶ 20, Exh. 4, pp. 2-3.) On May 6, 2026, HPMC's counsel offered an apology and assured that they were actively working on the production of the responses and documents. (Moghadam Decl., ¶ 21, Exh. 4, p. 2.)

On May 7, 2026, Plaintiff's counsel requested an extension to file a motion to compel. (Moghadam Decl., ¶ 21, Exh. 4, p. 2.) On the same day, HPMC's counsel granted leave for Plaintiff to "[t]ake another month." (Moghadam Decl., ¶ 22, Exh. 4, p. 2.)

On May 18, 2026, Plaintiff's counsel informed HPMC that they would proceed with filing a motion to compel. (Moghadam Decl., ¶ 23, Exh. 4, p. 1.) On May 19, 2026, HPMC's counsel replied, "I

truly apologize for the delay - let me check in with my team over here for an update to give you.” (Moghadam Decl., ¶ 24, Exh. 4, p. 1.)

Accordingly, the Court finds that Plaintiff sufficiently met and conferred with HPMC before filing this motion.

DISCUSSION

Plaintiff moves to compel further responses to Requests for Production Nos. 5 to 8, 10, 12 to 37, and 39 to 40. (Plaintiff’s Separate Statement, pp. 5:1-109:17.) The Court has examined the papers and the separate statements concerning these requests. The Court finds that Plaintiff does not adequately demonstrate good cause for these requests.

As discussed, “[t]o establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.” (Digital Music News LLC, *supra*, 226 Cal.App.4th at p. 224.)

Plaintiff presents numerous arguments regarding the relevance of the requested documents in the separate statement. However, the necessary standard is not merely relevance; rather, it requires a clear demonstration of good cause. Any explanation concerning relevance fails to specify how each request will tend, in reason, to prove or disprove the fact of consequence or lead to other evidence that will tend to prove or disprove the fact of consequence. The statute would not specifically obligate the moving party to present “specific facts showing good cause justifying the discovery sought by the demand” if mere relevance sufficed. As such, Plaintiff’s motion to compel further action and the accompanying request for monetary sanctions are DENIED.

ORDERS

1)

Plaintiff

Gloria Gonzalez-Karch’s Motion to Compel Defendant Hollywood Park Management

Company, LLC's Further Responses to Plaintiff's Request for Production of Documents, Set One, is DENIED.

2)

Plaintiff

Gloria Gonzalez-Karch's Request for Monetary Sanctions is DENIED.

3)

Plaintiff

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: September 21, 2026

Tamara

Hall

Judge

of the Superior Court